Questionnaire: Zoetis – Neogen Genomics Business

MN-05013

Deadline to respond: 11 November 2026

The Australian Competition and Consumer Commission (**ACCC**) is currently assessing Zoetis Holdings LLC's (**Zoetis**) proposed acquisition of the global animal genomic testing business of Neogen Corporation (**Neogen Genomics**) (the **Acquisition**).

For further information about the ACCC's assessment of the Acquisition, see the ACCC's Acquisitions Register.

On 2 November 2026, Zoetis made a remedy offer to the ACCC that it would provide a court-enforceable undertaking pursuant to s87B of the *Competition and Consumer Act 2010* (the **Act**), which would require Zoetis to divest and/or make available the assets (excluding Zoetis' laboratory located in the United States) associated with its supply of bovine genomics testing services to beef breed societies and their members in Australia (the **Divestiture Business**) to New Zealand Institute for Bioeconomy Science Limited trading as Bioeconomy Science Institute (**GenomNZ**) or such other purchaser approved by the ACCC (the **remedy offer**).

The ACCC is assessing the remedy offer and is seeking information and views from stakeholders on the offer. The questions below request views in respect of the remedy offer, and a summary of the offer is available on the ACCC's Acquisitions Register.

The ACCC invites you to provide submissions or information in response to the questions below by **11 November 2026** via email to mergers@accc.gov.au with a copy to mergersru@accc.gov.au, with the title *Submission re Zoetis – Neogen Genomics Business – remedy offer.* The ACCC must complete its assessment within strict statutory timelines which also impacts the time available for consultation.

If you would prefer to speak to a member of the ACCC case team, please email mergers@accc.gov.au with a copy to mergersru@accc.gov.au, with the title *Request for call re: Zoetis – Neogen Genomics Business – remedy offer*. Someone from the case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.

- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information and indicate why the information is confidential (as brief reasons in footnotes in your response or submission, or in a separate document such as the ACCC's general confidentiality claims template). The standard terms on which the ACCC accepts confidential information are outlined at the end of this document.

Questions about the remedy offer

If you have not previously provided a submission to the ACCC on this matter, please:

1. Provide a brief description of your business or organisation, including any commercial relationships with Zoetis, Neogen Genomics and/or GenomNZ.

2. Does Zoetis supply products or services other than genomic or genetic testing services to your business or organisation? Please provide a description of these products and services.

The remedy offer

3. Describe the extent to which, and how, Zoetis' remedy offer would address any competition concerns you have in relation to the Acquisition for beef and/or dairy cattle.

4. Outline any concerns you consider would not be resolved by the divestiture of the Divestiture Business.

5. Provide your views on the qualities a suitable purchaser should possess to ensure this business remained competitive post-Acquisition.

6. What type of laboratory facilities and field sales staffing capabilities do you consider a suitable purchaser would require to be successful?

7. What are the key assets, SNP chips, rights and personnel required to ensure a potential purchaser of the Divestiture Business can become a viable, effective, and long-term competitor in the supply of genomic testing for cattle in Australia?

8. Provide your view on the value of the HD50K, SIRETRACE and Angus HeiferSELECT products to genomic testing customers, and identify the available alternative options to these products.

9. Provide your views on whether the Divestiture Business would need to include any other products to become a viable, effective, and long-term competitor in the supply of genomic testing for cattle in Australia.

10. Provide your views on whether GenomNZ is a suitable purchaser of the Divestiture Business.

11. Provide your view on any factors that may impact effective implementation of the remedy offer e.g., undertaking drafting and any third-party consents (including regulatory) required, and its ability to address the competition concerns associated with the Acquisition.

12. Provide any additional information or comments you consider relevant to the ACCC’s consideration of the remedy offer.

Confidentiality of responses

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of the obligation to treat the information as confidential, and
- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

For further information on confidentiality, see the ACCC's confidentiality quick guide**.**